City Clerk's Office
AUG 11 2026
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County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED
AUG 11 2026
REGISTRAR OF VOTERS
COU[redacted]NTA CLARA
By [redacted] Deputy
Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Milpitas

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

Measure Letter -K- (if available – letters will be assigned after 5:00 p.m. on E-88)

Type Argu you ing

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

App

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** -K- being submitted. I oppose this measure.

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of the district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☐ **Residential or Residential Mailing;** ☑ **Business or Business Mailing**

* Address: 760 Newhall Dr., no. 1150, San Jose, CA 95110

* Email Address: Elizabeth@SVTaxpayers.org Phone Number (cell/direct): (408) 279-5000

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☐ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☑ Other: Sex: Female

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Elizabeth C. Brierly
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Director, Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)

Argument against Measure K - Milpitas business license tax

[Argument starts here]

Stop this huge new tax hike!

City of Milpitas councilmembers are letting their greed show. Either that, or they don't understand the reality:

Businesses don't pay taxes.

What?!

Businesses **create jobs, and goods that we value**, and services we need. But they have **countless expenses** and considerations, to accomplish all that.

You ask: How can it be that businesses "don't pay taxes"?

Taxes are just another cost of doing business, which owners **must pass along, to *stay* in business**. They pass costs along to…

- Customers, through higher prices;
- Employees, through lower wages/salaries; or
- Shareholders, through lower returns on investments (*e.g.*, our 401(k)s or IRAs!)

Remember the gigantic tariffs on imported electronics? how our favorite gadgets' prices spiked?

Gadget businesses *necessarily* **passed the tariff expense along to us**, through **higher prices.**

That illustrates a fundamental law of economics — like gravity. But it's not just economists who feel those effects in everyday activities, like shopping or filling up the tank.

The **cost of living** here is **already *too high*. Nothing seems affordable!**

Businesses **create goods and services** that *people want.*
Businesses **create jobs** that *people want.*

Their outputs are *amazing* — enhancing so many lives.

Don't trust politicians who would penalize businesses — the engine of our extraordinary standard of living — in order to fund pet projects.

If Measure K passes, Milpitas business owners who fall behind because skyrocketing taxation pushes customers away, may hatch plans to relocate to cities that appreciate them more.

Don't tax what you want *more* of.

Want more goods and services available at lower prices? Want more jobs to be available, at higher wages/salaries? Then please:

Vote NO.

Let's not penalize job and product providers! They help *us*, immeasurably, every day.

Now let's help them:

Vote *NO!*

Silicon Valley Taxpayer Association's volunteers advocate for taxpayers *throughout* Santa Clara County. Visit *SVTaxpayers.org*.

[Argument ends here]

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[Argument ends here]

Words: 298